Vikas Kumar vs State Govt. Of Nct Of Delhi on 8 August, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 806/2025
VIKAS KUMAR
Through: Mr
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versus

STATE GOVT. OF NCT OF DELHI .....Respon
Through: Ms.Priyanka Dalal, APP for th
Mr.Bibek Tripathi,
K.Shrivastav and Mr.S
Tiwari, Advocates for complai
CORAM:
HON'BLE MR. JUSTICE ARUN MONGA
ORDER

% 08.08.2025

1. The applicant is before this Court having remained under incarceration since 09.07.2024 (more than a year now), seeking indulgence of this Court for grant of bail during pendency of the trial in the criminal proceedings arising out of FIR No. 21/2023 dated 26.01.2023 for alleged offences under Sections 420/406/120B of the IPC, registered at P.S. Special Cell.

2. Briefly speaking, per FIR, the case set up by the prosecution/complainant (M/s. A.K. Mehta & Co., a partnership construction firm) is that an individual impersonated as a Tata Steel Limited employee named Mr. Santosh Sahu, along with other unknown accomplices, for defrauding the firm of Rs. 55,57,500. The Complainant had posted an advertisement on IndiaMart for procurement of TMT Bars, which prompted This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 09/08/2025 at 00:17:24 Sahu to contact them, falsely representing himself as a Tata Steel employee using a forged business card, a fake company email ID, and a counterfeit website bearing Tata Steel's original logo, trade dress, and address. Convinced by these misrepresentations, the Complainant placed orders and was lured into making advance payments based on the promise of a 10% long-term discount. Over three transactions between 05.09.2022 and 08.09.2022, the Complainant transferred Rs. 55,57,500 to two bank accounts in IDFC Bank and Canara Bank, both bearing the name "Tata Steel Limited." Despite assurances of delivery, no materials were received, and the accused became unresponsive after 09.09.2022. Upon contacting Tata Steel's Delhi office, the Complainant discovered that no such employee existed and all shared documents, including quotation letters, tax invoices, seals, and the website, were forged. The fraudulent domain used was found to have been registered recently via GoDaddy and was later suspended. Efforts to retrieve further information through Union Bank of India were hindered by privacy restrictions. The Complainant thus sought registration of an FIR and

a full investigation, citing impersonation, cheating, and forgery, to identify and prosecute the accused and dismantle the wider fraud network targeting others in similar industries.

3. In the aforesaid backdrop, I have heard the rival contentions and perused the case file.

4. Learned counsel for the applicant would argue on lines of grounds taken in the petition inter alia urging as below:-

> 4.1 The applicant has been falsely implicated and has no direct role in the alleged cheating or fraudulent transactions. There is no evidence indicating that the applicant personally defrauded anyone or received any proceeds of This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 09/08/2025 at 00:17:24 crime. The learned counsel argues that no amount of the alleged cheated funds has been recovered from the applicant, and the prosecution has failed to establish that the applicant gained any financial benefit. The case, it is submitted, rests solely on circumstantial evidence, and as held in Serious Fraud Investigation Office v. Nittin Johari [(2019) SCC OnLine SC 1156], bail is generally granted in economic offences where no direct financial gain to the accused is proven.

4.2 It is further submitted that there is no mens rea or criminal intent attributable to the applicant. Mere facilitation in the opening of bank accounts, without proof of conscious and fraudulent intent, cannot attract liability under stringent penal provisions. The prosecution has not produced any direct evidence--such as call records, messages, or money trails--to establish that the applicant had knowledge of or intent to commit the alleged offence.

4.3 The learned counsel also argues that the seizure of multiple mobile phone, bank documents, and SIM card from the applicant is illegal. He urges that such actions constitute excessive and illegal seizure, violating the applicant's right to personal liberty under Article 21 of the Constitution. Mere possession of such materials, without a direct nexus to the offence, does not establish guilt.

4.4 It is submitted that the applicant has no prior criminal record and has been in judicial custody since 09.07.2024--over one year. The trial is not nearing conclusion, and key prosecution witnesses have not yet been examined. The prolonged pre-trial incarceration of the applicant, despite the lack of conclusive evidence, amounts to a violation of Article 21 and results in undue punishment before conviction. The applicant relies on Satender This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 09/08/2025 at 00:17:24 Kumar Antil v. CBI [(2022) SCC OnLine SC 825], wherein the Court emphasized that pre-trial detention should not be prolonged unnecessarily. 4.5 The applicant is a young, responsible individual with dependent and ailing parents who rely on him for care and support. Prolonged incarceration, particularly among hardened criminals, would irreparably damage his future and

goes against the principles of justice. 4.6 The applicant is willing to comply with any conditions the Court may impose to ensure his presence at trial. He has fully cooperated with the investigation, has no intention of absconding, and is ready to furnish sureties and abide by all directions of the Court.

4.7 Lastly, the learned counsel submits that the risk of tampering with evidence or influencing witnesses does not arise, as the case is largely based on documentary records already seized and in the custody of the investigating agency. Continued detention is therefore unnecessary and unwarranted.

5. Opposing the above submissions, the learned APP for the State argues that the applicant is not entitled to any relief at this stage, as there remains a genuine risk of him absconding or tampering with the evidence. She further submits that several co-accused have evaded investigation, have been declared proclaimed offenders, and proceedings against them are still ongoing.

6. Having heard, I am of the view that it is a fit case for bail. Let us see how.

7. At the outset, it appears that from the nature of the dispute seems to be prima facie, arising out of failed commercial transaction, although this issue is best left for adjudication at the stage of trial. At this juncture, it This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 09/08/2025 at 00:17:24 suffices to note that the allegations--pertaining both to inducement in the transfer of property and cheating--seem inherently contradictory. Such contradictions may require appreciation of evidence, which cannot be undertaken at the stage of considering bail.

8. In response to a specific query from this Court, the learned APP for the State has confirmed that the chargesheet has already been filed, and the investigation, insofar as the applicant is concerned, stands concluded. Hence, custodial interrogation is no longer required. Moreover, the prosecution has already seized all relevant documentary and electronic evidence qua applicant herein, making the possibility of evidence tampering highly remote. There is also no likelihood of the applicant absconding, given that he is a well-settled individual, has deep roots in society, and is the primary caregiver for his aged and ailing parents, who are dependent on him for their well-being.

9. The applicant has no previous criminal record, and the allegations against him are based primarily on presumptions and circumstantial evidence, without any direct material linking him to the core offence. He has cooperated fully during the course of investigation, including appearing before investigating authorities whenever required. There has been no attempt by the applicant to delay or obstruct the investigation, which reinforces his bona fide conduct.

10. Further continued incarceration would serve no useful purpose, especially when the trial is not likely to conclude in the near future. A prolonged pre-trial detention becomes punitive even before conviction, and violates the fundamental rule i.e. bail is the rule and jail the exception, particularly when the accused does not pose a flight risk or a threat to the This is a digitally signed order.

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11. As an upshot and taking a wholesome view of the matter, the applicant is directed to be released on bail on his furnishing personal bond with solvent surety of like amount to the satisfaction of the Trial Court/Duty Judge concerned as the case may be, subject to the other usual conditions to be imposed by the learned Trial Court/Duty Court.

12. Any observation made herein above is only for the purpose of disposing of the instant bail application and not to be construed, in any manner, as any expression on the merits of the pending case and the trial shall proceed without being influenced either way by the same.

13. Accordingly, the bail application stands disposed of.

ARUN MONGA, J AUGUST 8, 2025/dy This is a digitally signed order.

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